Third, Geelani admitted the conversation even though the tape was inaudible. The Central Forensic Laboratory in Delhi returned a finding that it could not conduct a voice sample test since the tape was inaudible. And yet the prosecution witness, Rashid the vegetable vendor from Azad market, claimed to have deciphered it after hearing it a few times.

Fourth, the interception of the conversation was in violation of the procedures laid down under the Indian Telegraph Act and POTA. Although Geelani's lawyers did challenge the procedures, they did not make it their main defence. And at the high court they did not even argue the point.

Fifth, the prosecution failed to produce Geelani's brother as a witness. If the conversation showed complicity, then clearly the younger brother knew of Geelani's role in the conspiracy. The police told the court that on questioning the younger brother they found he was innocent. Consequently they did not bother to take down his formal statement under Section 161 of the Criminal Procedure Code, even for the record.

The Delhi High Court has held: 'Prosecution had relied upon the conversation between Geelani and his brother in the afternoon of 14th December 2001 and had contended that the talk was incriminating, in that it showed Geelani's participation in the attack on Parliament House. We had, while discussing the taped conversation, even assuming the prosecution version to be correct, come to the conclusion that there was nothing which could incriminate Geelani as far as the conversation is concerned.'

Finally, the only other evidence against Geelani was his acquaintance with the co-accused. Geelani has never once attempted to deny this, admitting he knew them from well before the period of the conspiracy. The Delhi High Court judgement stated that the record of telephone calls between him and his co-accused is the only other evidence: 'We are, therefore, left with only one piece of evidence against S.A.R. Geelani, being the record of telephone calls between him and the accused Mohd. Afzal and Shaukat. This circumstance, in our opinion, does not remotely, far less definitely and unerringly, point towards the guilt of the accused S.A.R. Geelani.'

There was no other evidence against S.A.R. Geelani. He was acquitted *not* because the prosecution could not produce evidence, but because there *was* no evidence to produce.

And so the inevitable question: Why was Geelani arrested? Why should the police want to frame an innocent man? Suddenly our usual scepticism about the police dissolves in the face of our suspicions about Kashmiri Muslims.